

DeREIS v. BURKE

21CV45133

CROSS-COMPLAINANT'S MOTION FOR LEAVE TO FILE AN AMENDED PLEADING

This is an action for partition of real property. There was a probate action related hereto (10PR7129). Before the Court is a motion by defendant and cross-complainant Deborah Burke for leave to file a Second Amended Cross-Complaint (hereinafter SAXC). In particular, cross-complainant wishes to augment the description of property allegedly converted by cross-defendant, which forms the basis for her second cross-action for conversion. Cross-complainant also wishes to augment the amount in controversy. Service appears to be proper. No opposition appears in the Court's registry of action.

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to CRC 3.1324, the moving party must: (a) specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and (b) include with the moving papers a copy of the proposed amended pleading and a declaration specifying (1) the effect of the amendment(s); (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request was not made earlier. Although the supporting declaration fails to explain when the new facts came to light, and why the amendment was not made earlier in this action, the absence of opposition tells this Court that no party is concerned. Thus, this Court will move on to the substantive merits.

Motions for leave to amend a pleading are directed to the sound discretion of the court. CCP §§ 473(a)(1) and 576. This discretion, however, is to be exercised liberally in favor of allowing amendments. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101-1102.) Courts may permit amendments at any stage in the proceedings, up to and including trial, so long as there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where amendment would require delaying the trial, resulting in loss of critical evidence, or significant added litigation burden/costs. (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486-488.) Prejudice is rare when the facts supporting a new cause of action first come to light during discovery. (*South Bay Building Enterprises, Inc. v. Riviera Lend-Lease, Inc.* (1999) 72 Cal.App.4th 1111, 1124-1125.) Although unexcused delays and lack of diligence may be considered, they alone are insufficient to deny leave. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175; *Honig v. Financial*

Corp. of America (1992) 6 Cal.App.4th 960, 967; *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)

Motion GRANTED. Cross-complainant to file SAXC within 5 days. The Clerk shall provide notice of this Ruling to the parties forthwith. Cross-complainant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

HESSLER v. KAUTZ VINEYARDS et al

21CV45613

DEFENDANT'S DISCOVERY MOTIONS

This is a personal injury, premises liability action. Plaintiff generally alleges that she was attending an event at defendant's venue when she and another guest lost their footing/balance near a rope barricade, resulting in injury to plaintiff.

Before the Court are the following discovery motions:

1. Defendant's motion to compel an initial response to form interrogatories;
2. Defendant's motion to compel an initial response to special interrogatories;
3. Defendant's motion to compel an initial response to RPDs;
4. Defendant's motion to have the RFAs deemed admitted.

In addition to discovery orders, defendant also seeks a total of \$1,600.00 in sanctions.

One of the motions is technically deficient in that it combines three distinct motions in one. (See CCP §1003.) Pursuant to Govt Code §70617, defendant was required to tender \$60 for each motion seeking an order even if the motions are heard together. In other words, although one commingled memorandum is permissible (CRC 3.1112(c)), counsel still had to tender three filing fees. Defense counsel is directed to the clerk's office to pay the requisite additional \$120 in filing fees.

The overdue discovery was first served on plaintiff via electronic mail on 05/11/22, and re-served on counsel on 07/07/22 (following some concern that the email attachments did not go through). That same day, plaintiff died. Since then, this case has remained in quasi-limbo waiting for plaintiff's successor in interest to assume control of the litigation. Much to this Court's concern, and despite a warning to the parties that cooperation needs to take place for a successor in interest to take over (see Minute Order dated 12/02/22), nothing has been done until just recently. As explained by plaintiff's counsel in her recent filing, a personal representative has yet to be appointed, despite there being an active probate case filed in Sacramento County (see 34-2023-00336226). Although counsel expected the family to agree to allow Stephanie to serve as successor in interest in this case, that agreement was apparently not quickly forthcoming, thus requiring additional court effort in Sacramento. Given that plaintiff died almost 11 months ago, this Court can see no cogent reason for why no personal representative has been appointed. Certainly, plaintiff's counsel has not offered any explanation for the delay.